

		Complaint does not satisfy the requirements for pleading a class action. (Motion, 5:9-6:14.) No legal argument is made as to the other requests which appear to be in the notice of motion, although the motion appears to argue the Complaint is insufficiently pled as a whole. (Demurrer, 5:1-8.) To the extent Defendants are arguing that portions of the Complaint should be stricken because it is insufficiently pled, <i>Pierson v. Sharp Memorial Hospital, Inc.</i> (1989) 216 Cal.App.3d 340, 342, explains, “Preliminarily, we note a motion to strike is generally used to reach defects in a pleading which are not subject to demurrer. A motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is a ground for general demurrer. [Citation.]” Regarding the class action allegations, Plaintiff appears to concede this argument. The Opposition states: “PLAINTIFF does not oppose the striking of all clear and direct references to “CLASS ACTION” damage claims.” (Opposition, 2:2.) Because Plaintiff concedes on this point, the Court grants the motion to the extent it seeks to strike the Complaint’s class action allegations only. Moving party to give notice.
4	Li vs Alanisi 2021-01218134	Motion to Be Relieved as Counsel of Record for plaintiff Jun Li Moving attorney Helen W. Quan’s Motion to be Relieved as Counsel for Plaintiff Jun Li (Motion) is GRANTED. Moving attorney’s motion was previously continued from 6-26-23 because there was no proof of service filed with the motion and no proposed order filed either. Moving attorney’s

	motion was again continued from 7-17-23 because moving attorney still had not filed MC-053 as required. As of 7-17-23, moving attorney has filed the required proposed order on MC-053 (see ROA 260, 261). Therefore, the motion now complies with <i>California Rules of Court</i>, rule 3.1362, including <i>CRC</i> 3.1362(e). Based on the foregoing, the motion is granted. Moving attorney will remain counsel of record for Plaintiff Jun Li until attorney files proof of service of the signed order on Plaintiff Jun Li. Moving attorney is to give notice. Motion to Be Relieved as Counsel of Record for plaintiff Dongli Yang Moving attorney Helen W. Quan's Motion to be Relieved as Counsel for Plaintiff Dongli Yang (Motion) is GRANTED. Moving attorney's motion was previously continued from 6-26-23 because there was no proof of service filed with the motion and no proposed order filed either. Moving attorney's motion was again continued from 7-17-23 because moving attorney still had not filed MC-053 as required. As of 7-17-23, moving attorney has filed the required proposed order on MC-053 (see ROA 260, 261). Therefore, the motion now complies with <i>California Rules of Court</i>, rule 3.1362, including <i>CRC</i> 3.1362(e). Based on the foregoing, the motion is granted. Moving attorney will remain counsel of record for Plaintiff Dongli Yang until attorney files proof of
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		service of the court's signed order on Plaintiff Dongli Yang. Moving attorney to give notice.
5	Sunwest Bank vs Madison Realty Equities, LLC 2019-01114433	Claim of Right to Possession Hearing Pursuant to the stipulation of the interested parties, signed by the court on 9/20/2023, the motion is off calendar.
6	Petersen vs American Building & Remodeling, Inc. 2019-01077652	Claim of Exemption – Levy Judgment Debtor Jonathan Wolf's Claim of Exemption in his 2019 Land Rover Range Rover VIN # SALWR2REIKA830714, License Plate 9EOU421 is DENIED. The exemption claimant has the burden of proof at the hearing on the claim of exemption. <i>Code of Civil Procedure</i>, § 703.580(b).) However, the “exemption statutes should be construed, so far as practicable, to the benefit of the judgment debtor.” <i>Schwartzman v. Wilshinsky</i> (1996) 50 Cal.App.4th 619, 630; <i>McMullen v. Haycock</i> (2007) 147 Cal.App.4th 753, 758. Here, Judgment Debtor moves pursuant to <i>Code of Civil Procedure</i> section 703.140. “The exemptions set forth in section 703.140 are available only in cases brought under Title 11 of the United States Code, and are thus often called ‘bankruptcy-only’ exemptions.” <i>In re Garcia</i>, 451 B.R. 909, 913 (C.D.